Republic of the Philippines
Office of the President
NATIONAL COMMISSION ON INDIGENOUS PEOPLES
6th & 7th Floors Sunnymede IT Center, 1614 Quezon Avenue, South Triangle, Quezon City
Website: www.ncip.gov.ph

COMMISSION EN BANC RESOLUTION NO. 08-071-2021
Series of 2021

A RESOLUTION CONDEMNING THE CONTINUED KILLINGS OF INDIGENOUS PEOPLES (IPs) BY THE COMMUNIST PARTY OF THE PHILIPPINES – NEW PEOPLE'S ARMY – NATIONAL DEMOCRATIC FRONT (CPP – NPA – NDF)

WHEREAS, the Philippine Government has been addressing the terrorist activities of the CPP – NPA – NDF, Communist Terrorist Groups (CTGs), for more than 50 years now. While their party membership is a very small percentile compared to the population, the network they established as mass-based support has created fear, confusion, and terrorist intimidation, especially in the Ancestral Domains (ADs), resulting in the deaths, disappearances, and sufferings of the Filipino people, most notably on the Indigenous Cultural Communities/Indigenous Peoples (ICCs/IPs);

WHEREAS, since ICCs/IPs are located in Geographically Isolated and Disadvantaged Areas (GIDAs), they are marginalized and vulnerable to exploitation and recruitment by the CTGs, and their ADs are conducive for the establishment of NPA Guerilla Bases and Zones;

WHEREAS, the CTGs have been murdering thousands of IP Leaders/Elders, human rights defenders, women, youth, and children, the most glaring of which are the Rano Massacre of Tagabawa ICCs/IPs in Davao del Sur in 1981, the killing of Cordillera's Father Conrado Balweg in his ancestral house in 1999, the killing of Talaingod's first Mayor Jose Libayao in the presence of his family, community, and the representative from the Asian Development Bank (ADB) in Talaingod, Davao del Norte in 2001. Since 2020, at least twenty-two (22) IP Leaders/Elders - human rights defenders, were murdered, including Datu Bernandino Montenegro Astudillo in March 2020, Hawudon Jumar Bucales in October 2020, and Datu Boy Maca Astudillo, and in October 2021 (referred to as "Annex A");

WHEREAS, the Mindanao Indigenous Peoples Conference for Peace and Development (MIPCPD) published in 2008 Task Force Gantangan Magazine a list of 369 IPs mercilessly and brutally killed by the NPA and reported an additional list of 87 IP leaders who suffered the same fate in 2012-2017 (referred to as "Annex B");

WHEREAS, the CTGs falsely justify these brutal killings claiming the victims were Government informants when in truth they were only advocating their ICCs/IPs rights, and/or supporting the Government's Whole-of-Nation Approach (WoNA), Good Governance Policy, and the National Task Force to End Local Communist Armed Conflict (NTF – ELCAC). These government programs have caused the ICCs/IPs to realize the deception of the CTGs and for wayward members to return to the folds of the law;

WHEREAS, the CTGs arrogantly, deliberately, and systematically conduct criminal and terroristic acts, and every government intervention is being labeled as militarization propagating false narratives locally and internationally of government abuse of the rights of ICCs/IPs;

WHEREAS, during the United Nations (UN) 48th Human Rights Council Session on 7 October 2021, Michelle Bachelet, the High Commissioner for Human Rights, stated that there are reports

received by her office on human rights abuses of the New People's Army of the Communist Party of the Philippines including the killing of civilians, recruitment of children and extortion;

WHEREAS, Australia, Canada, the European Union (EU), the United Kingdom, New Zealand and the United States of America, listed the CPP-NPA as a terrorist organization;

WHEREAS, in the UN Secretary General's Report on Children and Armed Conflict dated 20 June 2019, the New People's Army, together with Islamic State of Iraq and Syria (ISIS), Daesh and Al-Qaeda, was listed as one of the groups that gravely violate the rights of children;

WHEREAS, the CTGs not only violate laws of general application, but specifically, compound the aggression by violating the ICCs/IPs' 36 Specific Rights under the 4 Bundles of Rights provided for under the Indigenous Peoples' Rights Act of 1997 (IPRA), namely: Rights to Ancestral Domains, Self-Governance and Empowerment, Social Justice and Human Rights, and Cultural Integrity, and other local and international instruments;

WHEREAS, UN Human Rights Council resolutions on indigenous peoples urge States to take all measures necessary to ensure the rights, protection and safety of indigenous peoples and indigenous human rights defenders, including indigenous women human rights defenders, and that all human rights violations and abuses against them are prevented and investigated and that the perpetrators are held accountable;

WHEREAS, the Philippines is a member of the United Nations that upholds the United Nations Declaration of Human Rights (UNDHR), and is a signatory to the International Convention on the Elimination on Racial Discrimination (ICERD) ensuring the protection of ICCs/IPs rights together with the following core UN human rights treaties namely; the International Covenant on Civil and Political Rights (ICCPR), the International Covenant on Economic, Social and Cultural Rights (ICESR), Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW), Convention on the Rights of the Child (CRC), Convention Against Torture and other Cruel, Inhuman and Degrading Treatment or Punishment (CAT), Convention on the Rights of Persons with Disabilities (CRPD) and the International Convention on the Protection of the Rights of All Migrant Workers and Members of their Families (CMW);

NOW, THEREFORE, BE IT RESOLVED, as it is hereby **RESOLVED,** that the National Commission on Indigenous Peoples condemns the acts of the CTGs, especially those against ICCs/IPs and endorses the attached initial data and information of said killings, and urges:

1. The members of the Senate and House of Representatives, and the Judiciary, to review the laws and processes, within their mandates, on the aforementioned issues, to make them more responsive in protecting the rights of the ICCs/IPs;
2. The Department of Justice (DOJ), Commission on Human Rights (CHR), Department of Interior and Local Government (DILG), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), National Intelligence Coordinating Agency (NICA), and other related branches of government to conduct a separate or joint investigation on the foregoing CTG atrocities against the ICCs/IPs;
3. The Department of Justice (DOJ), Commission on Human Rights (CHR), Department of Interior and Local Government (DILG), Armed Forces of the Philippines (AFP), Philippine National Police (PNP), National Intelligence Coordinating Agency (NICA), and other related government agencies to undertake a joint legal offensive to include violations under the Anti-Terrorism Law, law enforcement, and joint information operations through the National Task Force to End Local Communist Armed Conflict (NTF-ELCAC) Framework; and
4. The filing of appropriate cases and actions for violations of the International Humanitarian Law and Anti-Terrorism Law and other appropriate laws not only in the Philippine legal framework, but also in other jurisdictions, including the international fora such as the United Nations (UN).

RESOLVED FURTHER that the Regional and Provincial Offices and Community Service Centers shall:

1. Encourage the IPMRs to sponsor discussion and possible adoption of this Commission En Banc (CEB) Resolution by their respective Local Legislative Councils and Policy Making Bodies; and
2. Conduct information education campaign/consultation (IEC) activities on the abuses of the rights of the ICCs/IPs by the CPP–NPA–NDF and this CEB Resolution.

RESOLVED FINALLY, that the Office of the Executive Director (OED) shall ensure dissemination of this Resolution to all other Government Offices and other concerned stakeholders. The Office of Empowerment and Human Rights (OEHR) is hereby directed to monitor compliance with the above directives.

APPROVED this 20th day of October 2021 in Quezon City, Philippines.

GASPAR A. CAYAT
Commissioner, CAR and Region 1

NORBERTO M. NAVARRO
Commissioner, Region 2

ROLANDO M. RIVERA
Commissioner, Region 3
and Rest of Luzon

JEORGE M. LARGADO
Commissioner, Island Groups
and Rest of Visayas

PINKY GRACE P. PAREJA
Commissioner, Northern and
Western Mindanao

JENNIFER PIA-SIBUG-LAS
Commissioner, Central Mindanao

ALLEN A. CAPUYAN
Chairperson/
Commissioner, Southern
and Eastern Mindanao

ATTESTATION

I attest that this Resolution was approved by the Commission during its Regular Session on the date as above stated.

ROGELIO FRANCISCO M. BANTAYAN, JR.
Executive Director and Head Secretariat